

THOMAS, J., concurring

678, 711 (2019) (THOMAS, J., concurring). To ensure that we are not “perpetuat[ing] a usurpation of the legislative power,” *id.*, at 718, we should reevaluate our continued recognition of even a limited form of the *Bivens* doctrine.

“*Bivens* is a relic of the heady days in which this Court assumed common-law powers to create causes of action.” *Wilkie v. Robbins*, 551 U. S. 537, 568 (2007) (THOMAS, J., concurring) (quoting *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 75 (2001) (Scalia, J., concurring)). In the decade preceding *Bivens*, the Court believed that it had a duty “to be alert to provide such remedies as are necessary to make effective” Congress’ purposes in enacting a statute. *J. I. Case Co. v. Borak*, 377 U. S. 426, 433 (1964). Accordingly, the Court freely created implied private causes of action for damages under federal statutes. See, e. g., *Sullivan v. Little Hunting Park, Inc.*, 396 U. S. 229, 239 (1969); *Allen v. State Bd. of Elections*, 393 U. S. 544, 557 (1969).

This misguided approach to implied causes of action in the statutory context formed the backdrop of the Court’s decision in *Bivens*. There, the Court held that federal officers who conducted a warrantless search and arrest in violation of the Fourth Amendment could be sued for damages. *Bivens*, 403 U. S., at 397. The Court acknowledged that Congress had not provided a statutory cause of action for damages against federal officers and that “the Fourth Amendment does not in so many words provide for its enforcement by an award of money damages.” *Id.*, at 396–397. But it concluded, consistent with the then-prevailing understanding of implied causes of action in the statutory context, that federal courts could infer such a “remedial mechanism.” *Id.*, at 397 (citing *Borak*, 377 U. S., at 433).

This holding “broke new ground.” *Ante*, at 99. From the ratification of the Bill of Rights until 1971, the Court did not create “implied private action[s] for damages against federal officers alleged to have violated a citizen’s constitutional rights.” *Malesko*, 534 U. S., at 66. Suits to recover such